

certify and report on the account and lay copies of it, together with his report, before each House of Parliament.

Short title,
interpretation
and extent.

3.—(1) This Act may be cited as the North Atlantic Shipping Act, 1961.

(2) In this Act “ the Minister ” means the Minister of Transport.

(3) It is hereby declared that this Act extends to Northern Ireland.

CHAPTER 54

An Act to make provision with respect to the use of parts of bodies of deceased persons for therapeutic purposes and purposes of medical education and research and with respect to the circumstances in which post-mortem examinations may be carried out; and to permit the cremation of bodies removed for anatomical examination.
[27th July, 1961]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Removal of
parts of
bodies for
medical
purposes.

1.—(1) If any person, either in writing at any time or orally in the presence of two or more witnesses during his last illness, has expressed a request that his body or any specified part of his body be used after his death for therapeutic purposes or for purposes of medical education or research, the person lawfully in possession of his body after his death may, unless he has reason to believe that the request was subsequently withdrawn, authorise the removal from the body of any part or, as the case may be, the specified part, for use in accordance with the request.

(2) Without prejudice to the foregoing subsection, the person lawfully in possession of the body of a deceased person may authorise the removal of any part from the body for use for the said purposes if, having made such reasonable enquiry as may be practicable, he has no reason to believe—

(a) that the deceased had expressed an objection to his body being so dealt with after his death, and had not withdrawn it; or

(b) that the surviving spouse or any surviving relative of the deceased objects to the body being so dealt with.

(3) Subject to subsections (4) and (5) of this section, the removal and use of any part of a body in accordance with an authority given in pursuance of this section shall be lawful.

(4) No such removal shall be effected except by a fully registered medical practitioner, who must have satisfied himself by personal examination of the body that life is extinct.

(5) Where a person has reason to believe that an inquest may be required to be held on any body or that a post-mortem examination of any body may be required by the coroner, he shall not, except with the consent of the coroner,—

(a) give an authority under this section in respect of the body; or

(b) act on such an authority given by any other person.

(6) No authority shall be given under this section in respect of any body by a person entrusted with the body for the purpose only of its interment or cremation.

(7) In the case of a body lying in a hospital, nursing home or other institution, any authority under this section may be given on behalf of the person having the control and management thereof by any officer or person designated for that purpose by the first-mentioned person.

(8) Nothing in this section shall be construed as rendering unlawful any dealing with, or with any part of, the body of a deceased person which is lawful apart from this Act.

(9) In the application of this section to Scotland, for subsection (5) there shall be substituted the following subsection:—

“(5) Nothing in this section shall authorise the removal of any part from a body in any case where the procurator fiscal has objected to such removal.”

2.—(1) Without prejudice to section fifteen of the Anatomy Post-mortem Act, 1832 (which prevents that Act from being construed as examinations applying to post-mortem examinations directed to be made by a competent legal authority), that Act shall not be construed as applying to any post-mortem examination carried out for the purpose of establishing or confirming the causes of death or of investigating the existence or nature of abnormal conditions. c. 75.

(2) No post-mortem examination shall be carried out otherwise than by or in accordance with the instructions of a fully registered medical practitioner, and no post-mortem examination which is not directed or requested by the coroner or any other competent legal authority shall be carried out without the authority of the person lawfully in possession of the body; and subsections (2), (5), (6) and (7) of section one of this Act shall, with the necessary modifications, apply with respect to the giving of that authority.

Cremation of
bodies after
anatomical
examination.

2 Edw. 7. c. 8.
15 & 16 Geo. 6.
& 1 Eliz. 2. c. 31.

Short title,
etc.

15 & 16 Geo. 6.
& 1 Eliz. 2. c. 28.

3. The provision to be made and the certificate to be transmitted under section thirteen of the Anatomy Act, 1832, in respect of a body removed for anatomical examination may, instead of being provision for and a certificate of burial, as mentioned in that section, be provision for the cremation of the body in accordance with the Cremation Acts, 1902 and 1952, and a certificate of the cremation.

4.—(1) This Act may be cited as the Human Tissue Act, 1961.

(2) The Corneal Grafting Act, 1952, is hereby repealed.

(3) This Act shall come into operation at the expiration of a period of two months beginning with the day on which it is passed.

(4) This Act does not extend to Northern Ireland.

CHAPTER 55

ARRANGEMENT OF SECTIONS

Section

1. Continuance of Crown Estate Commissioners, and general provisions as to their constitution and functions.
2. Reports and accounts of Commissioners.
3. General provisions as to course of management.
4. Grants for public or charitable purposes.
5. Special provisions as to particular properties.
6. Power to make regulations for land open to public.
7. Powers of Minister of Works in Regent's Park.
8. Miscellaneous provisions as to transfers of and title to property.
9. Savings, transitional provisions and repeals.
10. Short title, extent and interpretation.

SCHEDULES:

First Schedule—Constitution etc. of Crown Estate Commissioners.

Second Schedule—Savings and transitional provisions.

Third Schedule—Repeals.

An Act to make new provision in place of the Crown Lands Acts, 1829 to 1936, as to the powers exercisable by the Crown Estate Commissioners for the management of the Crown Estate, to transfer to the management of the Minister of Works certain land of the Crown Estate in Regent's Park and extend or clarify the powers of that Minister in Regent's Park, to amend the Forestry (Transfer of Woods) Act, 1923, as it affects the Crown Estate, to amend the law as to escheated land, and for purposes connected therewith.

[27th July, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—